

Intellectual Property Rights

B.Tech 6th Sem 2nd Sessional Exam - Detailed Solutions

Q-1. What do you mean by patentable subject matter and also discuss patentable criteria?

Patentable Subject Matter:

Patentable subject matter refers to the specific types of creations, inventions, or discoveries that the law recognizes as eligible for patent protection. Under the Indian Patents Act, 1970, an "invention" is defined as a new product or process involving an inventive step and capable of industrial application.

However, the Act also explicitly defines what is *not* patentable subject matter under **Sections 3 and 4**. For example, mere discoveries of scientific principles, mathematical algorithms, business methods, agricultural methods, and traditional knowledge (like the medicinal use of neem or turmeric) are strictly excluded from being patentable subject matter in India.

Patentability Criteria:

For an invention (that falls under patentable subject matter) to actually be granted a patent, it must satisfy a rigorous three-pronged test:

1. Novelty (Newness):

The invention must be absolutely new. It must not have been published, publicly disclosed, used, or made available to the public anywhere in the world before the date of filing the patent application. If the invention already exists in the body of knowledge known as "prior art," it fails the novelty test.

2. Inventive Step (Non-Obviousness):

Even if an invention is new, it must not be an obvious combination of existing knowledge. The Indian Patents Act defines an inventive step as a feature that involves:

- **Technical advancement** as compared to existing knowledge, OR
- **Economic significance**, OR
- **Both**, and makes the invention **not obvious to a person skilled in the art**.

(This means a standard professional in that specific field shouldn't look at the invention and say, "That was obvious; I could have easily thought of doing that.")

3. Industrial Applicability (Utility):

The invention must possess practical utility. It must be "capable of being made or used in an industry." Abstract theories or machines that contradict the laws of physics (like a perpetual motion

machine) cannot be patented because they cannot be practically built or used to provide a tangible benefit.

Q-2. Discuss procedure for filling patents under Indian Patent Act 1970.

Filing a patent in India involves a strict, multi-step legal procedure at the Indian Patent Office (IPO):

1. Patentability Search (Optional but Highly Recommended):

Before filing, a prior art search is conducted to ensure the invention is truly novel and to avoid wasting time and money on unpatentable ideas.

2. Drafting the Application (Form 1 & Form 2):

The inventor/agent must draft the patent specification.

- *Provisional Specification*: Filed when the invention is still in the conceptual stage. It secures a priority date. A complete specification must follow within 12 months.
- *Complete Specification*: Contains the full, detailed description of the invention, drawings, and the specific "claims" that define the legal boundaries of the protection sought.

3. Filing the Application:

The application is submitted to the appropriate Patent Office based on jurisdiction, along with the required government fees.

4. Publication:

The application is kept secret initially and is published in the official Patent Journal after **18 months** from the date of filing. An applicant can file Form 9 to request "early publication" if they want it published within a month.

5. Request for Examination (RFE):

Patents are not examined automatically. The applicant must file an RFE (Form 18) within **48 months** from the priority/filing date.

6. First Examination Report (FER):

A Patent Examiner scrutinizes the application and issues an FER containing objections regarding patentability (novelty, obviousness) or formatting.

7. Response to FER and Hearing:

The applicant must reply to these objections within 6 months. If the examiner is still not satisfied, a hearing is scheduled to resolve outstanding issues.

8. Grant of Patent:

Once all objections are resolved, the patent is granted, recorded in the register, and published in the patent journal. It remains valid for 20 years, subject to the payment of annual renewal fees.

Q-3. What do you mean by copyright? Which kind of works can be copyrighted under Indian Copyright Act 1957?

Meaning of Copyright:

Copyright is a form of Intellectual Property Right (IPR) granted by law to creators of original works. It gives the creator the exclusive legal right to reproduce, distribute, adapt, translate, perform in public, and display their work.

- **Crucial Principle:** Copyright protects the *expression* of an idea, not the underlying idea, concept, or procedure itself.
- **Term:** In India, the general term of copyright is the lifetime of the author plus 60 years after their death.

Kinds of Works Copyrighted (Section 13 of the Act):

Under the Indian Copyright Act, 1957, copyright subsists in the following specific classes of works:

1. **Original Literary Works:** Includes books, articles, novels, poems, and scripts. Significantly, **computer software, programs, and databases** are legally categorized and protected as literary works under Indian law.
2. **Original Dramatic Works:** Includes pieces for recitation, choreographic work, or entertainment in a dumb show (pantomime), the scenic arrangement or acting form of which is fixed in writing or otherwise.
3. **Original Musical Works:** Includes a work consisting of music and any graphical notation of such work (like sheet music). It does *not* include any words or actions intended to be sung/spoken with the music.
4. **Original Artistic Works:** Includes paintings, sculptures, drawings (diagrams, maps, charts, plans), engravings, photographs, and works of architecture.
5. **Cinematograph Films:** Any work of visual recording along with its sound recording (e.g., movies, documentaries, video content).
6. **Sound Recordings:** A recording of sounds from which such sounds may be produced, regardless of the medium (e.g., songs on a CD, digital audio files, podcasts).

Q-4. Discuss procedure for obtaining design protection.

(Note: The question says "200", which is a typo for the **Designs Act, 2000**).

What is a Design?

Under the Designs Act, 2000, "design" refers only to the features of shape, configuration, pattern, ornament, or composition of lines or colors applied to any article. It protects the *visual appearance* or aesthetics of an object, not its functional or mechanical working.

Procedure for Obtaining Design Protection:

1. Check for Eligibility (Novelty):

The design must be new or original. It must not have been previously published in any country and must be significantly distinguishable from known designs.

2. Classification of the Article:

India follows the Locarno Classification system. The applicant must identify the specific class under which their article falls (e.g., Class 12 for means of transport, Class 06 for furniture).

3. Filing the Application:

An application (Form 1) is filed at the Patent Office. It must include:

- The prescribed fee.
- Four copies of the **representation of the design** (clear photographs, drawings, or tracings showing the design from multiple angles: front, back, top, bottom, side).
- A brief statement of novelty claiming the specific visual features to be protected.

4. Examination by the Controller:

Unlike patents, designs do not require a separate request for examination. Once filed, the Design Office automatically examines the application to ensure it meets the legal definition of a design, is novel, and is correctly classified.

5. Objections and Compliance:

If there are defects or if the design is deemed not novel, the Patent Office communicates these objections. The applicant is given an opportunity (usually 6 months) to correct the defects or argue against the objections.

6. Registration and Publication:

If the application satisfies all requirements and objections are cleared, the design is registered. The Patent Office issues a Certificate of Registration and publishes the design details in the official journal.

7. Term of Protection:

A registered design is protected for an initial period of **10 years**, which can be extended for an additional **5 years** upon paying a renewal fee.